

## Ram Das v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2011 · WRIT - C No. 54701 of 2011 · **Writ disposed; 50% deposit then departmental representation with hearing.**

### HEADNOTE

A recovery certificate issued in section 135 theft proceedings was challenged for want of a clause 8.1(b)(iii) hearing. The Division Bench disposed of the writ at admission, directing a 50% deposit within one month, after which the consumer may represent to the authority, who shall hear and pass a reasoned order within a further month. On deposit, coercive action stays until a week after that order is communicated.

### FACTUAL SUMMARY

Ram Das challenged a recovery certificate issued against him by the Uttar Pradesh electricity authorities, alleging that no opportunity of hearing had been afforded as required by clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005. The High Court was informed that the recovery flowed from theft-of-electricity proceedings under section 135 of the Electricity Act, 2003. The writ was heard and disposed of at the admission stage.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::8.1(b)(iii)

hearing on recovery in s.135 theft

#### HOLDING

On a challenge to a recovery certificate issued in section 135 theft proceedings without the clause 8.1(b)(iii) hearing, the writ was disposed at admission directing the petitioner to deposit 50% of the recovered amount within one month; subject to that deposit he may file an objection or representation, which the authority shall decide after fullest opportunity of hearing by a reasoned order within a further month; the writ papers may be treated as part of the representation; on deposit, no coercive action until one week after communication of that departmental order. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER CLAUSE 8.1(B)(III) HEARING IS A CONDITION PRECEDENT TO RECOVERY IN SECTION 135 THEFT PROCEEDINGS, AND THE MERITS OF THE ASSESSMENT OR RECOVERY AMOUNT

Disposed at admission by a deposit-and-representation direction without construing clause 8.1(b) or section 135. ¶ 1